

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA,  
SITTING IN ITS MARCH TERM, A. D. 2026.

BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY, SR..... CHIEF JUSTICE  
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE ..... ASSOCIATE JUSTICE  
BEFORE HIS HONOR : YUSSIF D. KABA ..... ASSOCIATE JUSTICE  
BEFORE HER HONOR: CEATNEH D. CLINTON-JOHNSON.....ASSOCIATE JUSTICE  
BEFORE HIS HONOR : BOAKAI N. KANNEH .....ASSOCIATE JUSTICE

Musu Vincent of the City of Monrovia, )  
Liberia ..... Movant )  
Versus ) Motion to Dismiss Appeal  
)

Philip Massaquoi, by and thru his Attorney- )  
In-Fact, Marcus Massaquoi, also of the City )  
of Monrovia, Liberia ..... Respondent )

GROWING OUT OF THE CASE:

Philip Massaquoi, by and thru his Attorney- )  
In-Fact, Marcus Massaquoi, also of the City )  
of Monrovia, Liberia ..... Respondent )

Versus

Appeal

Musu Vincent of the City of Monrovia, )  
Liberia ..... Movant )

GROWING OUT OF THE CASE

Musu Vincent of the City of Monrovia, )  
Liberia ..... Petitioner )

Versus

Petition for the Cancellation of  
Deed

Philip Massaquoi, by and thru his Attorney- )  
In-Fact, Marcus Massaquoi, also of the City )  
of Monrovia, Liberia ..... Respondent )

Heard: March 18, 2026

Decided May 21, 2026

MR. JUSTICE KABA DELIVERED THE OPINION OF THE COURT

This motion to dismiss arises from an appeal of a final ruling in a petition to cancel a deed. The records before us show that the movant herein, Musu Vincent, filed a petition to cancel a title deed against the respondent, Philip Massaquoi, in the Sixth Judicial Circuit, Civil Law Court, Montserrado County. After the pleadings rested, the case was heard on its merits. At the conclusion of the trial, the presiding judge entered final judgment in favor of

the movant, granting the petition and ordering the cancellation of the respondent's title deed.

The respondent, dissatisfied with the judgment, entered an exception thereto and announced an appeal to this Honorable Court. The records further show that the respondent thereafter complied with all jurisdictional requirements for completing an appeal under Section 51.4 of the Civil Procedure Law, namely: filing a bill of exceptions, filing an appeal bond, and serving and filing the notice of completion of the appeal. These steps, taken within the time prescribed by law, vested this Court with jurisdiction to hear and determine the appeal. Despite the respondent's compliance with these requirements, the movant filed a motion to dismiss the appeal. The gravamen of the movant's contention is that the respondent failed to comply with Section 51.11 of the Civil Procedure Law by neglecting to ensure that the trial court's records were transcribed and transmitted to this Court within ninety (90) days after the rendition of final judgment. The movant submits that this failure provides a sufficient legal basis for dismissing the appeal.

The respondent, in its resistance, does not deny that the records were not transmitted within the statutory period. However, the respondent asserts that before the motion to dismiss was filed, the records had already been duly transcribed and transmitted to this Court. The respondent further avers that the delay was neither intentional nor due to negligence, but was caused by circumstances beyond its control, specifically the unavailability of its former counsel, who had assumed government duties. The respondent maintains that upon retaining new counsel in 2025, immediate steps were taken to regularize the appeal by transcribing and transmitting the records. The respondent therefore prays that the motion be denied and that the appeal be heard on its merits.

In light of these contentions, the issue for determination is whether the failure to transmit the records within the time prescribed by Section 51.11 of the Civil Procedure Law constitutes a jurisdictional defect warranting the dismissal of the appeal.

In addressing this issue, it is imperative that we first examine the statutory framework governing appeals in this jurisdiction. Section 51.4 of the Civil Procedure Law sets forth the mandatory requirements for completing an appeal. These requirements are:

- (a) The announcement of the taking of the appeal;
- (b) The filing of a bill of exceptions;
- (c) The filing of an appeal bond; and
- (d) The service and filing of a notice of completion of the appeal.

This Court has consistently held that these requirements are jurisdictional in nature, and failure to comply with any of them within the time allowed by statute is fatal and warrants dismissal of the appeal.

In the instant case, the movant does not allege any violation of Section 51.4. Indeed, it is undisputed that the respondent complied with all of the jurisdictional prerequisites for the completion of the appeal. Therefore, the appeal was properly perfected, and jurisdiction was duly vested in this Court. The movant's contention, however, is predicated upon Section 51.11 of the Civil Procedure Law, which states: that the clerk of the court from which the appeal is taken shall make up a record containing certified copies of all the writs, returns, notices, pledges, motions, applications, certificates, minutes, verdicts, decisions, rulings, orders, opinions, judgments, bills of exceptions, and all other proceedings in the case. He shall transmit this record with a copy of the appeal bond to the appellate court within ninety days after rendition of judgment. The clerk of the appellate court shall docket the record forthwith and forward a receipt to the clerk who transmitted it."

This Court holds that the provisions of Section 51.11, while important for the orderly processing of appeals, are not a jurisdictional requirement statutorily imposed on the appellant in perfecting an appeal. This Court has long adhered to the principle that not every procedural misstep warrants the harsh penalty of dismissal. Where the jurisdictional steps have been duly taken, and the delay complained of does not demonstrate an abandonment of the appeal or result in material prejudice to the adverse

party, this Court is inclined to allow the appeal to proceed in keeping with the ends of substantial justice.

That in the instant case, the movant filed a motion to dismiss the respondent's appeal for failure to transcribe the records. The excuse of the respondent that his lawyer had been appointed to public service and therefore did not follow up on the transcription of the records on appeal, same being a plausible and reasonable excuse for the delay in transmitting the records, and more significantly, the records having been transcribed and transmitted to this Court before the motion to dismiss was filed, this negates any inference of abandonment.

Moreover, the movant has failed to demonstrate that the delay occasioned any material injury or prejudice to its interest. In the absence of such showing, and given that the defect complained of has already been cured, this Court sees no legal basis to dismiss the appeal. The law favors the disposition of cases on their merits rather than on technicalities. To dismiss the appeal under the circumstances presented would be to elevate form over substance and defeat the ends of justice.

WHEREFORE AND IN VIEW OF THE FOREGOING, the motion to dismiss the respondent's appeal is hereby denied, and the appeal is ordered proceeded with. Costs to abide final determination. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLOR JAMES N. KUMEH APPEARED FOR THE MOVANT. COUNSELLOR DAVID N. KATIAH APPEARED FOR THE RESPONDENT.